

- 3) Defendants' response thereto shall be filed per Code.
- 4) **The Parties are ORDERED to appear at a Case Management/Trial Setting Conference on Thursday, May 14, 2026, at 8:30 a.m., in Department 32**, to discuss the resetting of trial. Each party is ordered to file and serve an updated Case Management Conference Statement 15 days in advance of May 14, 2026.

9. 9:00 AM CASE NUMBER: C24-03360
CASE NAME: LISA LOPEZ VS. PETER DEMPSEY
HEARING ON DEMURRER TO: ANSWER
FILED BY: LOPEZ, LISA
TENTATIVE RULING:

Notice of Settlement of Entire Case filed. Hearing vacated.

10. 9:00 AM CASE NUMBER: C25-00983
CASE NAME: DARCELL KELLY VS. EDDIE DRUMMER
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: KELLY, DARCELL
TENTATIVE RULING:

Plaintiff and cross-defendant Darcell Kelly a.k.a. Darcell Purefoy ("Cross-Defendant") brings this demurrer to the Cross-Complaint of defendant and cross-complainant Eddie Drummer ("Cross-Complainant").

Cross-Defendant argues that that Cross-Complainant has failed to plead sufficient facts to support any of their causes of action, that all the causes of action are time barred, and that the first cause of action for breach of contract is barred by the statute of frauds. (Demurrer, pp. 1-2.) Cross-Defendant asks the Court to sustain their demurrer in its entirety, without leave to amend. (Demurrer MPA, p. 9.)

For the reasons discussed below, the Court sustains Cross-Defendant's demurrer to the first (breach of contract), second (fraud), and third (unjust enrichment) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 20 days of notice of entry of this order. (Code Civ. Proc. (CCP), §472b; California Rules of Court (CRC), rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Christopher B. Lewis Decl. ISO Demurrer, ¶¶ 4-7; CCP, § 430.41.)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged."